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| <b>Meeting Name:</b>                        | Planning Committee (Smaller Applications)                                                            |
| <b>Date:</b>                                | 21 January 2025                                                                                      |
| <b>Report title:</b>                        | <b>Addendum report</b><br>Late representations, clarifications, corrections, and further information |
| <b>Ward(s) or groups affected:</b>          | Rotherhithe & London Bridge and West Bermondsey                                                      |
| <b>Classification:</b>                      | Open                                                                                                 |
| <b>Reason for lateness (if applicable):</b> | Clarifications to published reports and response to further public comments                          |
| <b>From:</b>                                | Director of Planning and Growth                                                                      |

## PURPOSE

1. To advise members of clarifications, corrections, representations and further information received in respect of the following items on the main agenda. These were received after the preparation of the report(s) and the matters raised may not therefore have been taken into account in reaching the stated recommendation.

## RECOMMENDATION

2. That members note and consider the additional information in respect of each item in reaching their decision.

## FACTORS FOR CONSIDERATION

3. Additional consultation responses have been received in respect of the following item on the main agenda:

### **ITEM 6.1: 24/AP/3577 - Addendum report (adjourned planning application 24/AP/3577) Land Rear 19-49 Bush Road, London, SE8 5AP**

#### **Condition 9: recommend amending to include underlined text:**

4. No development shall commence until details of the means of enclosure for all site boundaries, including a structural engineer report and method statement for walls taller than 2m and walls for existing buildings, specification for repairing/maintaining any boundary treatments to be retained, have been submitted to and approved in writing by the Local Planning Authority. The approved means of enclosure shall be carried out

prior to above ground works and all site boundaries shall be retained and maintained in perpetuity.

Reason: In the interests of visual and residential amenity in accordance with the National Planning Policy Framework (2024); Policy D4 (Delivery good design) of the London Plan (2021); Policy P13 (Design of Places), Policy P14 (Design Quality), Policy P15 (Residential Design) and Policy P56 (Protection of amenity) of the Southwark Plan (2022).

## **ITEM 6.2: 22/AP/4126 - Neighbourhood Housing Office, 26 Leathermarket Street, London, SE1 3HN**

### **Paragraph 16 (Amendments to the application)**

5. Document: Presentation response to feedback – submitted January 2026
6. Transport Assessment Addendum – submitted 19 January 2026
7. Ecological Appraisal (Preliminary) – submitted 20 January 2026
8. Tree Survey and Arboricultural Impact Assessment (updated), as two trees (T5 and T7) within the garden have been removed by the Council – submitted 20 January 2026

### **Paragraph 32 (adjustment to the park boundary)**

9. The Parks & Natural Environment Team agree to a land swap as they will get 15.1m<sup>2</sup> of planting in exchange for the loss of 6.7m<sup>2</sup> on the opposite side of the new building.

### **Paragraph 101**

10. Image of 'Proposed front (south) elevation' is an earlier iteration and was included in the officer report in error. The below image is of the current proposal to be decided at planning committee.



## **Paragraph 135 (Artwork to west elevation of 22 Leathermarket Street)**

11. The Director, Leathermarket Street Management Company Ltd (for 22 Leathermarket St) advised that the *'public art is the permanent back-lit Charles Dickens quote designed by Joseph Kosuth that exists on the western elevation of the building. The public artwork was funded by The Arts Council and by the partners of Marldon (the design and build developer and freeholder).'*
12. The applicant submitted the following engagement history specifically regarding the artwork and how they got to a definitive position of re-providing artwork within the scheme proposal, as opposed to relocating the existing artwork.

### *Purpose of the artwork requirement and current planning position*

13. *The public artwork on the western elevation of 22 Leathermarket Street was required by a planning condition in 2003 to mitigate a blank flank wall. The proposed scheme reinstates the historic building line, removing visibility of that wall and the justification for the condition.*
14. *The artwork is not secured by any Section 106 agreement, which contains no obligation to retain, maintain, or preserve its visibility.*

### *Attempts to relocate the artwork*

15. *The applicant made sustained good-faith efforts to resolve the matter collaboratively, including offering to relocate the artwork on different wall of 22 Leathermarket Street. These discussions took place over an extended period and sought a consensual solution that would preserve the artwork's presence while enabling delivery of the scheme.*

### *Engagement with the artist and outcome of relocation discussions*

16. *In March and April 2022, contact was established via the artist's representatives, referred to in correspondence as Joseph Kosuth Studio, and an on-site meeting took place with a representative. No direct engagement with the artist himself was secured.*
17. *As recorded in the April 2022 follow-up email (see attached February 2023 Letter of Objection), discussions covered potential relocation on the building of No. 22, alternative nearby locations including the proposed scheme, and the option of commissioning new artwork as part of the proposed scheme.*
18. *These details were shared with the owners of 22 Leathermarket Street and discussed in meetings involving the owners and ward councillors; however, none of the options were acceptable to the owners.*

### *Definitive position of the owners of 22 Leathermarket Street*

19. *In February 2023, the owners of 22 Leathermarket Street confirmed, in the attached “26 Leathermarket Street JMB Office Redevelopment – Letter of Objection”, that relocation of the artwork would not be accepted, stating: “The freeholders, and the Directors of 22 Leathermarket Street Management Ltd ... are not willing to accept any grounds for the relocation of this public sculpture to another site.”*
20. *In November 2025, that position was reiterated verbatim in a further objection, in which the owners again refused relocation and additionally stated that the artist is “not willing to consider a relocation proposal”.*
21. *On that basis, consent to relocate the artwork is not given. As a matter of property law, the artwork forms part of the owners’ building and cannot be relocated without consent. Relocation is therefore not a deliverable option.*
22. *Only deliverable option, given the owners’ definitive position: re-provision of the artwork.*
23. *The proposed building sits wholly within the applicant’s ownership, leaving a gap of approximately 40 centimetres to 22 Leathermarket Street. The artwork would remain physically untouched, with the effect limited to loss of visibility.*
24. *As relocation requires consent that has been refused, there is no legal requirement to retain visibility, and the development lawfully obscures the artwork, the only realistic and lawful option is to leave the artwork in situ and re-provide it within the proposed scheme.*

#### *Re-providing the artwork: copyright and community choice*

25. *Any re-provision of the artwork cannot be an exact copy, as the original is protected by copyright. Instead, a new artwork inspired by the original would be provided. This would be secured through an appropriate legal agreement, with up to four options presented for community choice, ensuring transparency, community involvement, and long-term certainty.*

#### *Planning balance and public benefit*

26. *There is an acknowledged loss of view of the existing artwork. However, the artwork remains intact, its public value is re-provided within the scheme, and the impact is visual only and mitigated.*
27. *This limited impact must be weighed against the substantial public benefit of delivering 26 affordable homes for local residents in acute housing need. In planning balance terms, the public benefits significantly outweigh the impact on the artwork.*

#### *Future flexibility*

28. *Should the owners of 22 Leathermarket Street change their position in the future, relocation of the existing artwork could still be pursued by*

*agreement. Until such time, the proposed approach represents the only deliverable, lawful, and proportionate solution.*

29. Planning officers acknowledge:

1. Granting permission for the proposed development could potentially in future lead to a breach of condition 8. Although the artwork would be 'retained' where it is, there would be insufficient space to access the artwork and carry out maintenance works if necessary.

2. For the reasons previously given in the main officer report, planning officers consider that in design/heritage terms the impact on the artwork and 22 Leathermarket Street would be acceptable. Planning officers recognise that the artwork has some importance, which is emphasised by the protection given by condition 8. However, overall it is considered that the proposed development would improve the streetscape and not harm the conservation area, particularly as new artwork could be provided as part of the new development.

### **Paragraph 149 (Ecology)**

30. An updated Preliminary Ecological Appraisal (PEA) as submitted on 20 January 2026. The applicant states that *'A full review has been undertaken of protected species, together with the newly purchased biological data. There were no discrepancies between these findings and the previous report, and any differences identified were minor. Overall, the conclusions confirm that no further surveys are required.'*

31. Our Ecologist provided additional comments below:

*The updated ecological assessment states:*

*Although the site sits within a locally designated SINC, it contains very limited habitat of ecological value and makes little contribution to the overall importance of the designation.*

*The updated ecological assessment recommends that Reasonable Avoidance Measures (RAMs) should be implemented during works to minimise potential impacts on protected species. RAMS are recommended for great crested newts, reptiles, hedgehogs and badgers.*

*These measures could be included within a CEMP inline with the ecological assessment.*

*Additional recommended condition:*

*PTC11- CEMP*

### **Paragraph 200 (Building Control comments – fire safety)**

32. No comments provided.

### **Paragraph 260 (Parking beat survey)**

33. An updated parking beat survey, submitted on 19 January 2026, states that:

*Parking Beat Surveys:*

- *The parking beat surveys covering the roads within 200m of the site were surveyed overnight on Tuesday, 13 January and Wednesday, 14 January 2026. The parking beat survey was undertaken by an independent survey company.*
- *The parking beat survey shows that there are two less parking spaces (compared to the 2021 survey) within a 200m walk of the site due to the addition of cycle shelters and E-bike/Scooter parking. The surveys also show that there has been a slight increase in the demand for car parking within the surveyed area (the number of available spaces reduced from 20 (in 2021) to 17 on the Tuesday and from 16 (in 2021) to 10 on the Wednesday. Notwithstanding this, the survey shows that there is spare on-street capacity overnight.*

**Paragraph 252**

34. Transport for London advised that the applicant must demonstrate how vehicles will be prevented from overrunning the designated inset loading bay and mounting the footway.
35. The applicant referred to '*the swept path analysis within the Transport Assessment*' which '*shows that delivery vehicles would be able to access and egress the loading bay without entering the footway. A 25mm footway would not prevent a delivery vehicle from overrunning the loading bay but neither would any kerb, albeit a higher kerb would be more of a deterrent.*
36. *The reason we proposed this layout was due to the highway officer requiring a minimum 2m footway (we currently have 1.5m). Instead of pushing the building back, we proposed the 'shared' footway/loading bay, similar to that provided in other places across London including New Bond Street where there is no kerb provided but rather studs to define the transition from loading bay to footway. These shared facilities allow the loading bays to be used as footways when deliveries are not occurring, widening the effective footway. The 25mm kerb upstand was proposed instead of studs as it better defines the loading bay.'*

Image – New Bond Street



Image – 3 existing permit car parking bays



Image – proposed: 1 disabled car parking bay and 12.5m loading bay

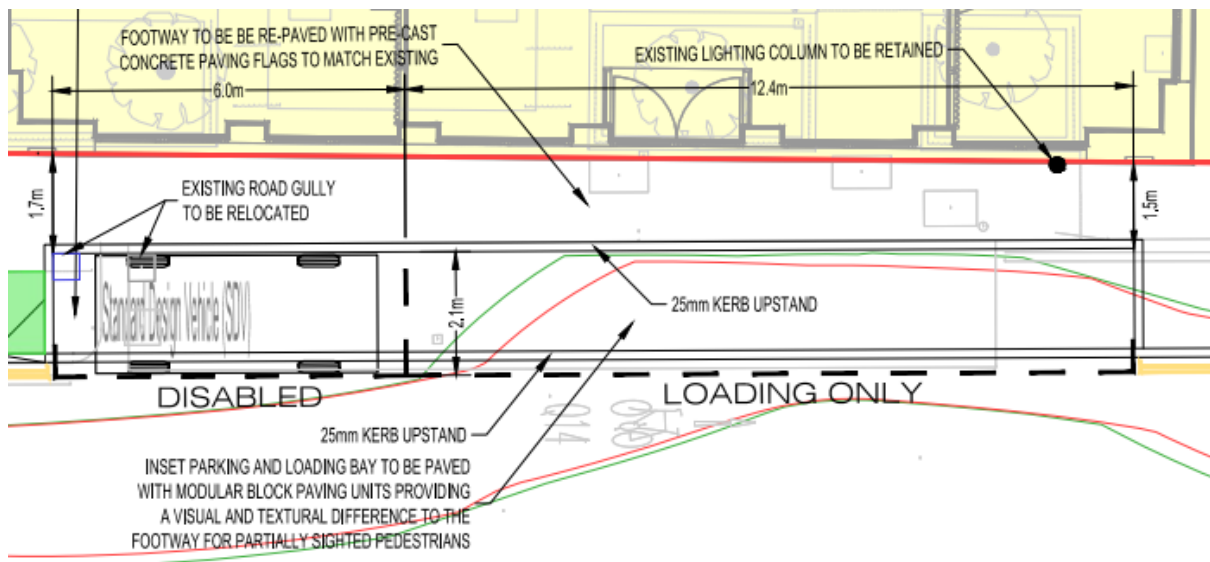


Image – servicing trip rates and two-way servicing trips ([LGV] light goods vehicles and other goods vehicles)

| Mode        | Daily Two-Way Servicing Trip Rates |       |       | Daily Two-Way Servicing Trips |     |       |
|-------------|------------------------------------|-------|-------|-------------------------------|-----|-------|
|             | LGV                                | OGV   | Total | LGV                           | OGV | Total |
| Office      | 0.120                              | -     | 0.120 | 2                             | 0   | 2     |
| Residential | 0.171                              | 0.004 | 0.175 | 6                             | 2   | 6     |
| Total       | -                                  | -     | -     | 8                             | 2   | 10    |

Table 7-1 shows that there would typically be 5 deliveries per day (10 two-way trips) at the site. Most deliveries (c. 85%) will take place by LGVs with c. 15% taking place by medium or large vehicles.

### Paragraph 266 (cycle parking)

37. Transport for London 'recommend that a stronger commitment to use of cargo cycles is provided, especially given the site's location and constraints. Cargo cycle loading and unloading areas should be identified and opportunities for charging electric bikes considered.'
38. The applicant advised that '*Cargo bikes were previous able to access the Sheffield stands behind the parking space in the public realm. The current layout would not enable cargo bikes to park on-site. Instead, they would need to use the visitor cycle parking on the corner of Leathermarket Street and Weston Street, which is a short walk from the site.*'
39. Given the site restrictions, planning officers consider that the use of existing off-street cycle parking for cargo cycles would be acceptable in this case.

Image – existing Sheffield stands



Image – existing visitor cycle parking on the corner of Leathermarket Street and Weston Street,



### **Paragraph 338 (carbon emissions)**

40. *The* applicant submitted the completed GLA carbon emissions reporting spreadsheet in Excel format, and the full BRUKL reports for the Be Lean and Be Green stages.
41. Final comments from Planning Policy: The applicant has addressed all comments provided and has provided the completed GLA carbon emissions reporting spreadsheet. Planning Policy have no further comments.

### **Paragraph 354 (S106 agreement)**

Highway works (S278 matter to be included in the S106 legal agreement):

- 42. Add - Provision of 1 off-street disabled car parking bay and 25mm kerb upstand (part of the new kerb fronting)
- 43. Remove – ‘Relocation of displaced on-street parking bays (location to be agreed with LBS Highways).’

Artwork at 22 Leathermarket Street:

- 44. Method statement covering protection and repair of any damage of the artwork during construction.
- 45. Carbon offset payment £19,950

Play equipment – bond

- 46. Amount to be agreed before a S106 legal agreement is signed / engrossed.

**Appendix 1 (conditions)**

New condition (artwork)

- 47. The applicant shall submit details of new artwork on the site, inspired by the original artwork on the west elevation of 22 Leathermarket Street, following community involvement, for approval in writing by the Planning Authority within six months of the planning decision. The artwork shall be installed strictly in accordance with the details so approved and shall be maintained as such thereafter.

Reason:

In the interests of visual and residential amenity in accordance with the National Planning Policy Framework (2024); Policy D4 (Delivery good design) of the London Plan (2021); Policy P13 (Design of Places), Policy P14 (Design Quality), Policy P15 (Residential Design) and Policy P56 (Protection of amenity) of the Southwark Plan (2022)

Condition 25 (soft landscaping)

- 48. Add ‘include’ to first sentence currently drafted as ‘The soft landscaping hereby approved shall native species and shall not be carried out otherwise than in accordance with the details shown on plan number AFA-316-P-001 opt 2 Rev PL4 and shall be retained for the duration of the use.’

25. The soft landscaping hereby approved shall include native species and shall not be carried out otherwise than in accordance with the details shown on plan number AFA-316-P-001 opt 2 Rev PL4 and shall be retained for the duration of the use. The planting, seeding and/or turfing shall be carried out in the first planting season following completion of building works and any trees or shrubs

that is found to be dead, dying, severely damaged or diseased within five years of the completion of the building works OR five years of the carrying out of the landscaping scheme (whichever is later), shall be replaced in the next planting season by specimens of the equivalent stem girth and species in the first suitable planting season. Planting shall comply to BS: 4428 Code of practice for general landscaping operations, BS: 5837 (2012) Trees in relation to demolition, design and construction and BS 7370-4:1993 Grounds maintenance Recommendations for maintenance of soft landscape (other than amenity turf).

Reason:

So that the Council may be satisfied with the details of the landscaping scheme, in accordance with the National Planning Policy Framework 2024; Policies SI 4 (Managing heat risk), SI 13 (Sustainable drainage), G1 (Green Infrastructure, G5 (Urban Greening) and G7 (Trees and Woodlands) of the London Plan 2021; Policy P13 (Design of Places), Policy P14 (Design Quality), Policy P56 (Protection of Amenity), Policy P57 (Open Space) and Policy P60 (Biodiversity) of the Southwark Plan (2022).

## **Ecology**

49. The updated ecological assessment states:

*Although the site sits within a locally designated SINCE, it contains very limited habitat of ecological value and makes little contribution to the overall importance of the designation.*

50. The updated ecological assessment recommends that Reasonable Avoidance Measures (RAMs) should be implemented during works to minimise potential impacts on protected species. RAMS are recommended for great crested newts, reptiles, hedgehogs and badgers.

51. These measures could be included within a CEMP inline with the ecological assessment.

Additional recommended condition:

52. No development shall take place, including any works of demolition, until a written CEMP has been submitted to and approved in writing by the Local Planning Authority. The CEMP shall oblige the applicant, developer and contractors to commit to current best practice with regard to construction site management and to use all best endeavours to minimise off-site impacts, and will include the following information:

- A detailed specification of demolition and construction works at each phase of development including consideration of all environmental impacts and the identified remedial measures;
- Site perimeter continuous automated noise, dust and vibration monitoring;

- Engineering measures to eliminate or mitigate identified environmental impacts e.g. hoarding height and density, acoustic screening, sound insulation, dust control measures, emission reduction measures, location of specific activities on site, etc.;
- Arrangements for a direct and responsive site management contact for nearby occupiers during demolition and/or construction (signage on hoardings, newsletters, residents liaison meetings, etc.);
- A commitment to adopt and implement of the ICE Demolition Protocol and Considerate Contractor Scheme; Site traffic - Routing of in-bound and outbound site traffic, one-way site traffic arrangements on site, location of lay off areas, etc.;
- Site waste Management - Accurate waste stream identification, separation, storage, registered waste carriers for transportation and disposal at appropriate destinations; and
- A commitment that all NRMM equipment (37 kW and 560 kW) shall be registered on the NRMM register and meets the standard as stipulated by the Mayor of London.
- Details of the Reasonable Avoidance Measures (RAM)s for protected species

53. To follow current best construction practice, including the following:

- Southwark Council's Technical Guide for Demolition & Construction at <https://www.southwark.gov.uk/construction>;
- Section 61 of Control of Pollution Act 1974;
- The London Mayors Supplementary Planning Guidance 'The Control of Dust and Emissions During Construction and Demolition';
- The Institute of Air Quality Management's 'Guidance on the Assessment of Dust from Demolition and Construction' and 'Guidance on Air Quality Monitoring in the Vicinity of Demolition and Construction Sites';
- BS 5228-1:2009+A1:2014 'Code of practice for noise and vibration control on construction and open sites. Noise';
- BS 5228-2:2009+A1:2014 'Code of practice for noise and vibration control on construction and open sites. Vibration';
- BS 7385-2:1993 Evaluation and measurement for vibration in buildings. Guide to damage levels from ground-borne vibration;
- BS 6472-1:2008 'Guide to evaluation of human exposure to vibration in buildings - vibration sources other than blasting; and
- Relevant Stage emission standards to comply with Non-Road Mobile Machinery (Emission of Gaseous and Particulate Pollutants) Regulations 1999 as amended & NRMM London emission standards (<https://nrmm.london>).

54. All demolition and construction work shall be undertaken in strict accordance with the approved CEMP and other relevant codes of practice, unless otherwise agreed in writing by the Local Planning Authority.

Reason: To ensure that occupiers of neighbouring premises and the wider environment do not suffer a loss of amenity by reason of pollution and nuisance, in accordance with the National Planning Policy Framework (2023); Policy P50 (Highway impacts), Policy P56 (Protection of amenity), Policy P62 (Reducing Waste), Policy P64 (Contaminated land and hazardous substances), Policy P65 (Improving air quality) and Policy P66 (Reducing noise pollution and enhancing soundscapes) of the Southwark Plan (2022).

### **Conclusion of the Director of Planning and Growth**

55. Having taken into account the additional information, following consideration of the issues raised, the recommendation remains that planning permission should be granted, subject to conditions as amended in this Addendum report and completion of a s106 agreement.

### **REASON FOR URGENCY**

56. Applications are required by statute to be considered as speedily as possible. The applications have been publicised as being on the agenda for consideration at this meeting of the Planning Committee and applicants and objectors have been invited to attend the meeting to make their views known. Deferral would delay the processing of the applications and would inconvenience all those who attend the meeting.

### **REASON FOR LATENESS**

57. The new information, comments reported and corrections to the main report and recommendation have been noted and/or received since the committee agenda was printed. They all relate to an item on the agenda and Members should be aware of the comments made.

### **BACKGROUND DOCUMENTS**

| <b>Background Papers</b> | <b>Held At</b>                                                 | <b>Contact</b>                                 |
|--------------------------|----------------------------------------------------------------|------------------------------------------------|
| Individual files         | Resources Department<br>160 Tooley Street<br>London<br>SE1 2QH | Planning enquiries<br>Telephone: 020 7525 5403 |